25NNCV06099 25NNCV06099

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-11

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CE%2C08%2F11%2F2026

Source SHA-256: 9da4dccc28aa8dd0960ce36c9f01cc51b9da78a3a534f7ee3d672cda16137ea2

Case Number: 25NNCV06099 Hearing Date: August 11, 2026 Dept: E

Hearing

Date: 08/14/2026 – 8:30 a.m.

Case No. 25NNCV06099

Trial Date: UNSET

Case Name: GOMEZ & GOMEZ, LLC.; et al. v. FAYEZ HENEIN, et al.

TENTATIVE RULING - MSJ

BACKGROUND

In short, Plaintiffs' action arises from misrepresentations that were allegedly made to Plaintiffs before/during Plaintiffs' purchase of real property (Subject Property).

Plaintiffs – (1) Gomez & Gomez, LLC and (2) Ricardo Gomez – filed the original complaint in this action on 8/29/2025.

On 9/4/2025, Plaintiffs filed the First Amended Complaint (FAC) against Defendants – (1) Fayez Henein; (2) Money Wise Mortgage Ventures, Inc.; (3) Segovia Real Estate Group; (4) Francisco A. Rodriguez; (5) Marta L. Rodriguez; (6) Jenny Segovia; and DOES 1-100.

The first (fraud and misrepresentation), fifth (negligent misrepresentation), and seventh (intentional interference with prospective economic advantage) causes of action are alleged against all Defendants.

The second (breach of contract) and sixth (violations of Civil Code sections 1102 et seq.) causes of action are alleged against Defendants, Francisco A. Rodriguez and Marta L. Rodriguez.

The third (breach of fiduciary duty) and fourth (constructive fraud) causes of action are alleged against Defendants, Money Wise Mortgage Ventures, Inc. and Fayez Henein.

Plaintiffs allege that on or about January 24, 2022, Plaintiff Ricardo Gomez entered into a Commercial Purchase Agreement and Joint Escrow Instructions to purchase the Subject Property from Defendants, Francisco A. Rodriguez and Marta L. Rodriguez. (See FAC, ¶ 12, Ex. A.)

Plaintiffs allege they were represented by Defendant brokerage firm Money Wise Mortgage Ventures and Defendant real estate agent Fayez Henein. (FAC, ¶ 13.)

Plaintiffs allege that as of April 2022, Plaintiff Gomez & Gomez LLC is the record title holder of the Subject Property. (FAC, ¶ 14.)

Plaintiffs allege that:

In or around January 2022, Defendants, and each of them, falsely represented to Plaintiffs and others that the subject property consisted of a fully renovated restaurant and six (6) residential units, free of any known Code violations or defects and that the subject property was zoned "mixed use" which would permit the subject property to contain both a commercial business operation (restaurant) and to also contain legally permitted residential dwelling units, as evidenced by the Multiple Listing Service (“MLS”), a copy of which is attached hereto and marked Exhibit B and incorporated herein by reference.

(FAC, ¶ 21.)

Plaintiffs further allege that unaware of the true facts, they purchased the Subject Property pursuant to a written contract (FAC, ¶¶ 27, Ex. A) and that:

28. On or
about September 7, 2022, while Plaintiff was attempting to remove one of the tenants from the subject property, Plaintiffs received notice that the property was determined to be subject to the RSO and the tenant could not be removed from the subject property without payment of the relocation fee then in effect, which ranged between $8,950.00 and $22,350.00. Plaintiffs' dilemma was that the non-compliant property was being rented in violation of Municipal Law and the tenant had to be removed to prevent further legal action against the Plaintiffs by the City of Los Angeles and the tenants themselves. A copy of the notice is attached hereto and marked as Exhibit C and incorporated herein by reference.

29.
Plaintiffs subsequently received notices from the City of Los Angeles related to the condition of the subject property, including Notice of Imposition of Code Violation Inspection Fee by the City of Los Angeles for the subject property and thereafter received Notice of Non-Compliance.

30. As a
result of the fraudulent non-disclosure by Defendants, and each of them, Plaintiffs have suffered damages, including but not limited to:

A. Financial
Loss on Sale: Plaintiffs suffered a $200,000 loss upon the resale of the subject property, attributable directly to undisclosed issues.

B. Relocation
Fees: Plaintiffs expended $101,750 in tenant relocation fees due to the unpermitted status of the units.

C.
Construction and Compliance Costs: Plaintiffs incurred $12,000 to demolish illegal units, $16,000 to remodel bathrooms and kitchens, $15,000 to obtain necessary permits and licenses, and $4,000 for an architect.

D. Equipment
and Operational Costs: Plaintiffs invested $25,000 in restaurant equipment and made a total of $364,000 in monthly payments, which were rendered futile by the property's non-compliance.

E. Legal and
Administrative Costs: Plaintiffs paid $54,000 in property taxes and $33,372 in eviction application fees, expenses necessitated by Defendants' failure to disclose material facts.

(FAC, ¶¶ 28-30.)

Defendants – Fayez Henein and Money Wise Property Management – now move for summary judgment.

RELIEF REQUESTED¿

Defendants [Moving Defendants, Movants, or Defendants], Fayez Henein and Money Wise Property Management Group, Inc., move the Court for an order granting summary judgment in favor of Defendants and against Plaintiffs, Gomez & Gomez, LLC and Ricardo Gomez, pursuant to section 437c of the California Code of Civil Procedure.

PAPERS SUBMITTED

Moving Papers : Notice/Motion; Separate Statement; Michael V. Ruocco Declaration; Fayez Henein Declaration; Proposed Order

Opposing Papers : Opposition; Separate Statement; Plaintiffs’ Request for Judicial Notice; Declaration of Ricardo Gomez

Reply Papers : Reply; Reply to Plaintiffs’ Response to Separate Statement of Undisputed Material Facts; Reply to Plaintiffs’ Statement of Additional Material Facts; Objections to Plaintiffs’ Evidence; Proposed Order

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP, § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. (CCP, § 437c(p)(2).) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

“Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (CCP, §437c(p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence sufficient to establish a triable issue of material fact on the merits of the defendant’s showing. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.)

TENTATIVE RULING

Procedural – Service on Non-Moving Defendants

Plaintiffs' FAC names several defendants.

Under CCP § 437c(a)(2), notice of motion and supporting papers shall be served on "all other parties to the action[.]" (CCP, § 437c(a)(2).)

Here, Moving Defendants appear to have served the moving papers on counsel for Non-Moving Defendants, Francisco A. Rodriguez and Marta L. Rodriguez.

Problematic here is that Moving Defendants' proofs of service do not indicate service of the initial moving papers on Non-Moving Defendants, Segovia Real Estate Group and Jenny Segovia. Moving Defendants' reply papers appear to indicate service of the reply papers on all Non-Moving Defendants; however, Moving Defendants' initial moving papers do not indicate service on all Non-Moving Defendants.

At the hearing, Moving Defendants are to address why they did not serve the moving papers on Non-Moving Defendants – Segovia Real Estate Group and Jenny Segovia – when moving papers are supposed to be served on all other parties to the action under CCP § 437c(a)(2).

Additionally, the Court notes that Plaintiffs also did not serve their opposition papers on Non-Moving Defendants – Segovia Real Estate Group and Jenny Segovia. At the hearing, Plaintiffs' counsel is to address why the opposition papers were not served on Non-Moving Defendants – Segovia Real Estate Group and Jenny Segovia – yet at the same time Plaintiffs' counsel did serve the opposition papers on Non-Moving Defendants – Francisco A. Rodriguez and Marta L. Rodriguez.

Substantive – Settlement Agreement

Moving Defendants – Fayez Henein and Money Wise Property Management Group, Inc. – move for summary judgment under the theory that Plaintiffs' (Gomez & Gomez LLC and Ricardo Gomez) instant action (25NNCV06099) fails as a matter of law because it is barred by a valid and fully enforceable settlement agreement.

On July 24, 2024, plaintiffs [hereinafter Tenant Plaintiffs] in another lawsuit (24STCV14069) –
Maria De Jesus Francisco; Jose Alonso Gonzalez Ramirez; Rufina De Jesus Francisco; Esperanza Guadalupe Lopez; Baltazar Cornejo; Joshua Jared Cornejo; Juan Francisco Garcia Reyes; Blanca Yanet Garcia Murcia – filed a first amended complaint against defendants – Gomez & Gomez, LLC; Francisco A. Rodriguez; and Marta L. Rodriguez [hereinafter Landlord Defendants] – for breach of warranty of habitability; breach of covenant of quiet enjoyment; negligence; breach of contract; and fraud.

In short, in 24STCV14069, Tenant Plaintiffs alleged that they were long-term tenants of a multi-unit residential property owned, operated, and managed by the Landlord Defendants located at 3030 East 4th Street, Los Angeles, CA 90063 (the "Property"). (UMF, #8.) The Tenant Plaintiffs contended that the Property was uninhabitable for years, including pervasive pest infestations, water intrusion, mold, defective flooring, plumbing issues, and lack of essential safety features such as smoke detectors and heating. (Id.) The Tenant Plaintiffs further alleged that the Landlord Defendants had actual and constructive notice of these conditions, yet failed to make necessary repairs. (Id.) As a result, the Tenant Plaintiffs alleged that the Landlord Defendants' acts and omissions caused them to suffer damages, including diminished rental value, property damage, out-of-pocket expenses, and emotional distress. (Id.)

Moving Defendants (Fayez Henein and Money Wise Property Management Group, Inc.) explain that Tenant Plaintiffs and Landlord Defendants entered into a Settlement Agreement and Mutual Release of All Claims And Rights (Settlement Agreement). (UMF, #9.)

Moving Defendants (Fayez Henein and Money Wise Property Management Group, Inc.) argue that because they acted as real estate broker and agent for Gomez & Gomez LLC [Plaintiff in this action and a Landlord Defendant in 24STCV14069] with respect to the purchase of the Subject Property, they fall squarely into the Settlement Agreement's definition of Defendants, i.e., Moving Defendants argue they can be considered a Landlord Defendant from the Settlement Agreement because they are agents of Landlord Defendants. Moving Defendants thus argue that the Settlement Agreement bars Plaintiffs' (Gomez & Gomez LLC and Ricardo Gomez) current action against them.

Moving Defendants' arguments are unavailing.

Neverkovec v. Fredericks explains how a third party that is not explicitly mentioned in a release agreement can attempt to use that release agreement to discharge itself from liability even though the third party was not specifically named.

"Release agreements are governed by the generally applicable law of contracts." (Neverkovec v. Fredericks (1999) 74 Cal.App.4th 337, 348 citing Appleton v. Waessil (1994) 27 Cal.App.4th 551, 554.)

It is not necessary for the third party to be specifically named in the contract, but such a party bears the burden of proving that the promise he seeks to enforce was actually made to him personally or to a class of which he is a member. (Neverkovec v. Fredericks (1999) 74 Cal.App.4th 337, 348-349 citing Garratt v. Baker (1936 5 Cal.2d 745, 748.)

Additionally:

[T]o obtain summary judgment on the ground that a general release has discharged him from liability, a third party to the release agreement must affirmatively show that the parties intended to release him. The burden of proof is on the third party, under both contract law and the summary judgment statute. (§ 437c, subd. (o).) Because the court must consider the circumstances of the contracting parties' negotiations to determine whether a third party not named in the release was an intended beneficiary, it will seldom be sufficient for the third party simply to rely on a literal application of the terms of the release. (4b) "The fact that ... the contract, if carried out to its terms, would inure to the third party's benefit[,] is insufficient to entitle him or her to demand enforcement." (Jones v. Aetna Casualty & Surety Co., supra, 26 Cal.App.4th at pp. 1724-1725, following Walters v. Calderon, supra, 25 Cal.App.3d at p. 871.) "However broad may be the terms of a contract, it extends only to those things concerning which it appears that the parties intended to contract." (Civ. Code, § 1648.) "Whether a third party is an intended beneficiary ... to the contract involves construction of the parties' intent, gleaned from reading the contract as a whole in light of the circumstances under which it was entered.” (Jones v. Aetna Casualty & Surety Co., supra, 26 Cal.App.4th at p. 1725.)

(Neverkovec v. Fredericks (1999) 74 Cal.App.4th 337, 349.)

Here, Moving Defendants utilize the Ruocco Declaration (Moving Defendants’ counsel) to attach the Settlement Agreement as Exhibit F to the Ruocco Declaration.

Moving Defendants (Fayez Henein and Money Wise Property Management Group, Inc.) do not meet their burden in demonstrating that the Settlement Agreement shows that the parties to the Settlement Agreement intended to release Moving Defendants.

As a preliminary matter, Moving Defendants were not explicitly named in the Settlement Agreement.

Since Moving Defendants were not explicitly named in the Settlement Agreement, they attempt to argue that they are agents of a named Landlord Defendant (Gomez & Gomez LLC) in the Settlement Agreement by citing to the first paragraph in the Settlement Agreement.

The first paragraph of the Settlement Agreement states:

This Settlement Agreement and Mutual Release (hereinafter "AGREEMENT"), is entered into and effective the date last signed below, by MARIA DE JESUS FRANCISCO; JOSE ALONSO GONZALEZ RAMIREZ; RUFINA DE JESUS FRANCISCO; ESPERANZA GUADALUPE LOPEZ; BALTAZAR CORNEJO; JOSHUA JARED CORNEJO; JUAN FRANCISCO GARCIA REYES; and BLANCA Y ANET GARCIA MURCIA ("PLAINTIFFS") and between Defendants GOMEZ & GOMEZ LLC, FRANCISCO A. RODRIGUEZ, MARTA L. RODRIGUEZ, their parents, subsidiaries, affiliates, trusts, beneficiaries of the companies, and related entities, and each of their directors, officers, trustees, members, partners, agents, advisors, shareholders, investors, managers, investment managers, property managers, representatives, attorneys, insurers, servants, employees (past, present, actual, ostensible and borrowed), predecessors, successors, assignors, and assignees, past and present (collectively referred to herein as "DEFENDANTS.") PLAINTIFFS and DEFENDANTS are collectively referred to herein as the "SETTLING PARTIES." FRANCISCO A. RODRIGUEZ and MARTA L. RODRIGUEZ are collectively referred to as the "RODRIGUEZ DEFENDANTS."

(Ruocco Decl., Ex. F, ¶ 1.)

Although Moving Defendants correctly note that the Settlement Agreement includes Landlord Defendants' (GOMEZ & GOMEZ LLC, FRANCISCO A. RODRIGUEZ, MARTA L. RODRIGUEZ) agents, when reading the Settlement Agreement as a whole in light of the circumstances under which it was entered, a reasonable person signing the Settlement Agreement would not construe Moving Defendants (Fayez Henein and Money Wise Property Management Group, Inc.) to be an intended beneficiary of the Settlement Agreement simply because the Settlement Agreement applies to agents of Landlord Defendants (GOMEZ & GOMEZ LLC, FRANCISCO A. RODRIGUEZ, MARTA L. RODRIGUEZ).

Moving Defendants' arguments ignore the language and structure of the Settlement Agreement along with the circumstances under which the Settlement Agreement was entered.

Moving Defendants cite to paragraph C of the "Recitals" section of the Settlement Agreement which states:

It is the intent of the SETTLING PARTIES to finally resolve the claims in issue between and among them, as well as any and all past, present or future claims, demands, actions, causes of actions, and liability of whatever kind and nature, whether known or unknown, suspected or claimed, including but not limited to claims for property damage, bodily injuries, emotional distress, lost profits, diminution in value, expenses, stigma damages and experts costs by SETTLING PARTIES arising out of or related to the claims made relating in any way to PLAINTIFFS' residency at or the alleged conditions of the SUBJECT PROPERTY through the date of execution of this Release, including any and all subsequent related events, any actions and/or omissions of SETTLING PARTIES or SETTLING PARTIES' agents or representatives and all other persons, with respect to any claim and/or cause of action asserted and/or that could have been asserted in the ACTION at any time in the ACTION without limitation.

(Ruocco Decl., Ex. F., p.1, ¶ C.)

Although Paragraph C of the Recitals section encompasses a broad range of claims, Moving Defendants ignore Paragraph A of the Recitals section which first states:

This matter involves claims by PLAINTIFFS for alleged injuries and damages arising from their tenancy at the property located at 3030 E. 4th Street, Los Angeles, CA 90063 (hereinafter referred to as the "SUBJECT PROPERTY"). PLAINTIFFS filed an action in the Superior Court for the County of Los Angeles captioned, Jesus Francisco et al. v. Gomez & Gomez LLC et al., LASC Case No. 24STCV14069 ("the ACTION").

(Ruocco Decl., Ex. F., p. 1, ¶ A.)

Here, the instant action does not involve claims by the Tenant Plaintiffs in 24STCV14069 for alleged injuries and damages arising from Tenant Plaintiffs' residency/tenancy at the subject property.

The instant action pertains to the instant Plaintiffs' (Gomez & Gomez LLC and Ricardo Gomez) claims in 25NNCV06099 pertaining to the alleged misrepresentations/breaches surrounding Plaintiffs' (Gomez & Gomez LLC and Ricardo Gomez) purchase of the subject property.

Moving Defendants' UMF # 12 in their Separate Statement additionally cites to the second paragraph in Section 6 (Release and Indemnification) of the Settlement Agreement.

The Court is not clear why Moving Defendants cite to the second paragraph in Section 6 (Release and Indemnification) of the Settlement Agreement.

The second paragraph in Section 6 (Release and Indemnification) of the Settlement Agreement states:

DEFENDANT GOMEZ & GOMEZ LLC agrees that upon the execution of this AGREEMENT and in consideration of the covenants undertaken herein, DEFENDANT GOMEZ & GOMEZ LLC does hereby fully and generally release and forever discharge all other SETTLING PARTIES and any of their divisions or related entities, and any and all of their past and present agents, servants, representatives, employees, employers, partners, predecessors, divisions, officers, directors, members, successors, descendants, ancestors, dependents, heirs, executors, administrators, assigns, assignors, related individuals and entities, attorneys, insurers, accountants, experts, and other agents and representatives of all kinds, from any and all claims, demands, rights and causes of action, liens, claims (including, without limitation, claims for personal injuries, bodily injuries, mental injuries, loss of earnings, property damage, restitution, injunctive relief, and exemplary damages of all kinds), assignments, contracts, covenants, actions, suits, causes of action, obligations, costs, warranty obligations, expenses, attorneys' fees, damages, losses, claims, controversies, judgments, orders and liabilities of whatsoever kind and nature, at equity, law or otherwise, whether now known or unknown, fixed or contingent, suspected or unsuspected, and whether or not latent or patent, which have existed or may have existed, or which do exist, or which hereafter can, shall, or may exist, which directly or indirectly arise from, and/or relate in any way to PLAINTIFFS' occupancy at the SUBJECT ·PROPERTY and/or any other interaction between DEFENDANT GOMEZ & GOMEZ LLC and any other SETTLING PARTIES through the date of execution of this Release.

(Ruocco Decl., Ex. F., p. 5, § 6, ¶ 2.)

The Court is not clear why Moving Defendants’ UMF 12 would cite to the second paragraph in section 6 of the Settlement Agreement because that paragraph pertains to Gomez & Gomez LLC releasing and discharging Settling Parties. Here, the premise of Moving Defendants’ MSJ is that the Settlement Agreement applies to Moving Defendants as agents of Gomez & Gomez LLC. Moving Defendants are not arguing that they are agents of the Settling Parties. Why would Moving Defendants cite to the aforementioned paragraph when that paragraph pertains to claims that Gomez & Gomez LLC are releasing and discharging? Or to phrase it more clearly, if Moving Defendants are arguing that they are agents of Gomez & Gomez LLC, why would they cite a portion of the Settlement Agreement in which they themselves (Moving Defendants as alleged agents of Gomez & Gomez LLC) are releasing claims against the Settling Parties?

Moving Defendants also cite to other sections of the Settlement Agreement, but those sections do not assist Moving Defendants in establishing that the Settlement Agreement was intended to release Moving Defendants.

Moving Defendants do not meet their burden in demonstrating that the parties [Tenant Plaintiffs and Landlord Defendants] to the Settlement Agreement intended to release Moving Defendants from the instant action in light of the language and structure of the Settlement Agreement.

Substantive – Standing

Moving Defendants argue that Plaintiff, Ricardo Gomez, does not have standing to sue because he is not the real party in interest and holds no ownership interest in the Subject Property.

Moving Defendants cite to CCP § 367 which states that “Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute.” (CCP, § 367.)

Further, Moving Defendants cite to River’s Side at Washington Square Homeowners Assn. v. Superior Court (2023) 88 Cal.App.5th 1209, 1225 for the proposition that the real party in interest is generally the person who has the right to sue under the substantive law.

Moving Defendants also argue:

In the context of a real estate transaction, the real party in interest is typically the named buyer or seller appearing in the deed. See Hacker v. Homeward Residential, Inc., 26 Cal.App.5th 270, 280 (2018) (holding that obtaining a grant deed establishes a colorable ownership interest sufficient to confer standing to bring wrongful foreclosure claims. See Fashion Valley Mall, LLC v. County of San Diego, 176 Cal.App.4th 871, 886 (2009) (confirming that "a member in a limited liability company does not hold any interest in the real property owned by the limited liability company").

(Def. Mot., p. 15.)

Moving Defendants also cite to § 17701.02 of the Corporations Code.

Moving Defendants then conclude that because the title to the Subject Property only identifies Plaintiff Gomez &

Gomez LLC, Plaintiff Ricardo Gomez thus lacks standing because Ricardo Gomez does not have any ownership interest in the Subject Property.

Moving Defendants' reply also argues:

A LLC's member's involvement in an entity's business affairs does not transform the entity's claims into individual claims. See Hilliard v. Harbour, 12 Cal. App. 5th 1006, 1013–16 (2017) (holding that a controlling member of an LLC lacked individual standing to sue a lender for elder abuse arising from the lender's misconduct toward the LLC, establishing that individual claims require injury originating in circumstances independent of membership status); see also PacLink Communications Intern., Inc. v. Superior Court, 90 Cal. App. 4th 958, 963–67 (2001) (holding that LLC members lacked individual standing to bring claims for fraudulent transfer of LLC assets, establishing that members hold no direct ownership interest in LLC assets and any injury to members from harm to LLC assets is merely incidental).

(Def. Reply, p. 7.)

The Court does not find Moving Defendants' arguments availing.

Moving Defendants fail to meet their burden in demonstrating that one or more elements of a cause of action cannot be established, and Moving Defendants fail to meet their burden in showing that there is a complete defense to the causes of action in the FAC.

Here, the Court finds that Moving Defendants did not satisfy their initial burden because Moving Defendants do not explain their argument on standing in a comprehensible manner.

Even if the Court assumes that Plaintiff Gomez & Gomez LLC is the exclusive owner of the subject property based on the theory that Gomez & Gomez LLC holds title to the Subject Property, the Court has no idea how Moving Defendants satisfy their initial burden in establishing that Plaintiff Ricardo Gomez lacks standing.

[The Court notes that Plaintiffs' FAC alleges that as of April 2022, Plaintiff Gomez & Gomez LLC is the record title holder of the Subject Property. (FAC, ¶ 14.)]

Moving Defendants explain that every action must be prosecuted by the real party in interest, and that the real party in interest generally has the right to sue under the substantive law.

Moving Defendants entirely fail to explain who the real parties in interest are for the claims Plaintiffs are bringing against Moving Defendants. Moving Defendants also entirely fail to explain what the legal standard is for the Court is to determine who the real party in interest is for the claims that Plaintiffs are bringing against Moving Defendants.

Plaintiffs bring the following claims against Moving Defendants: fraud and misrepresentation; negligent misrepresentation; intentional interference with prospective economic advantage; breach of fiduciary duty; and constructive fraud. Moving Defendants provide no explanation as to what the legal standard is for determining who the real parties in interest are for the aforementioned claims.

Moving Defendants cite to Hacker for the proposition that holding a grant deed establishes an ownership interest sufficient to confer standing to bring wrongful foreclosure claims; however, Moving Defendants provide no explanation as to how a case that allegedly pertains to wrongful foreclosure applies to the instant claims for: fraud and misrepresentation; negligent misrepresentation; intentional interference with prospective economic advantage; breach of fiduciary duty; and constructive fraud.

Moving Defendants also cite to Fashion Valley Mall, LLC v. County of San Diego, 176 Cal.App.4th 871, 886 (2009) for the proposition that "a member in a limited liability company does not hold any interest in the real property owned by the limited liability company."

The Court fails to see why Moving Defendants cite to Fashion Valley Mall, LLC when that case doesn’t even address the issue of standing.

Likewise, Moving Defendants entirely fail to explain what an ownership interest in property has to do with claims for: fraud and misrepresentation; negligent misrepresentation; intentional interference with prospective economic advantage; breach of fiduciary duty; and constructive fraud.

Do claims for fraud and misrepresentation; negligent misrepresentation; intentional interference with prospective economic advantage; breach of fiduciary duty; and constructive fraud, include an element pertaining to holding an ownership interest in property? Moving Defendants provide no explanation as to why an ownership interest is relevant to the aforementioned claims.

Moving Defendants also cite to § 17701.02 of the Corporations Code; however, that section of the Corporations Code contains numerous subdivisions. The Court has no idea what subdivisions and subparagraphs of section 17701.02 the Moving Defendants are attempting to argue are applicable here.

Additionally, Moving Defendants' reply cites to the case of Hilliard v. Harbour, 12 Cal. App. 5th 1006, 1013–16 (2017) for the proposition that a controlling member of an LLC lacked individual standing to sue a lender for elder abuse arising from the lender's misconduct toward the LLC, establishing that individual claims require injury originating in circumstances independent of membership status.

The Court fails to understand how Moving Defendants are connecting Hilliard to Plaintiffs' instant claims and the allegations in the FAC. Moving Defendants make no explanation as to how Hilliard applies to the allegations in the FAC.

Moving Defendants' reply cites to PacLink Communications Intern., Inc. v. Superior Court, 90 Cal. App. 4th 958, 963–67 (2001) for the proposition that LLC members lacked individual standing to bring claims for fraudulent transfer of LLC assets, establishing that members hold no direct ownership interest in LLC assets and any injury to members from harm to LLC assets is merely incidental.

Again, the Court fails to understand how Moving Defendants are connecting PacLink to the instant case and allegations in the FAC.

Plaintiffs here are not bringing claims

simply for fraudulent transfer.

Further, Plaintiffs are alleging that Moving Defendants breached their fiduciary duty to Plaintiffs and that Moving Defendants intentionally interfered with prospective economic advantage.

Moving Defendants provide no explanation as to how a claim for fiduciary duty or intentional interference with prospective economic advantage is connected to standing and title to property.

Likewise, Moving Defendants don't address how Plaintiffs allege that the individual Plaintiff, Ricardo Gomez, entered into the Commercial Purchase Agreement and Joint Escrow Instructions to purchase the property from Defendants Francisco A. Rodriguez and Marta L. Rodriguez.

While the Court is not stating that Plaintiff Ricardo Gomez does in fact have standing in the instant action, what the Court is stating is that Moving Defendants do not meet their burden in demonstrating that Plaintiff Ricardo Gomez lacks standing.

Moving Defendants assert arguments on Plaintiff Ricardo Gomez lacking standing; however, Moving Defendants fail to explain in a comprehensible manner how their arguments show that Plaintiff Ricardo Gomez lacks standing. Moving Defendants fails to root their arguments in legal authority that is on-point, and to the extent that Moving Defendants cite to legal authority, the Court has no idea how Moving Defendants demonstrate that their cited legal authority is applicable to the instant case because they don't explain their arguments in a comprehensible manner.

Summary

Moving Defendants' motion for summary judgement is DENIED. Moving Defendants failed to satisfy their initial burden.

Plaintiffs request judicial notice of Defendants and Cross-Complainants', Jenny Segovia and Segovia Real Estate Group, Cross-Complaint filed in 25NNCV06099.

The Court GRANTS Plaintiffs' request for judicial notice.